

26TRCV01053 26TRCV01053

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Case Number: 26TRCV01053 Hearing Date: August 31, 2026 Dept: B

Moving

Parties: Plaintiff Interpool, Inc.

Responding

Party: Defendant S and P Freight, Inc.

Motion

for Preliminary Injunction

The Court considered the moving, opposition, and reply papers.

RULING

The motion is DENIED.

BACKGROUND

On March 24, 2026, plaintiff Interpool, Inc. dba Trac Intermodal filed a complaint against S and P Freight, Inc. for (1) breach of contract, (2)-(3) common counts, (4) injunction and turnover order, (5) possession of personal property, (6) conversion.

LEGAL AUTHORITY

Under

CCP §527(a), "A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the

one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor. No preliminary injunction shall be granted without notice to the opposing party.”

“[A]

court will deny a preliminary injunction unless there is a reasonable probability that the plaintiff will be successful on the merits, but the granting of a preliminary injunction does not amount to an adjudication of the merits.” *Beehan v. Lido Isle*

Community Assn. (1977) 70 Cal. App. 3d 858, 866. “The function of a preliminary injunction is the preservation of the status quo until a final determination of the merits.” *Id.* “Trial courts traditionally consider and

weigh two factors in determining whether to issue a preliminary injunction. They are (1) how likely it

is that the moving party will prevail on the merits, and (2) the relative harm the parties will suffer in the interim due to the issuance or non-issuance of the injunction.” *Dodge, Warren &*

Peters Ins. Services, Inc. v. Riley (2003) 105 Cal. App. 4th 1414, 1420. “[T]he greater the . . . showing

on one, the less must be shown on the other to support an injunction.” *Id.* (citation omitted). The burden of proof is on the plaintiff as

the moving party “to show all elements necessary to support issuance of a preliminary injunction.” *O’Connell v.*

Superior Court (2006) 141 Cal. App. 4th 1452, 1481.

DISCUSSION

Plaintiff Interpool, Inc. dba Intermodal requests an order enjoining defendant S and P Freight, Inc. and its officers, agents, and employees from taking chassis owned by plaintiff from the chassis pools at the ports of Los Angeles and Long Beach during the pendency of this action.

The complaint alleges that on February 7, 2025, the parties entered into a written agreement, titled “Equipment Interchange Agreement for Marine Chassis Pools.” On January 6, 2026, defendant breached the agreement by failing to pay invoices for the rental of chassis pursuant to the contract and invoice terms. Plaintiff suffered damages in the amount of \$250,000. Defendants are in possession of plaintiff’s chassis and are incurring additional rental charges. The account balance on January 5, 2026 was \$142,674.50.

Under the fourth cause of action for injunction and turnover, the complaint alleges that defendants have knowingly and tortiously detained, trespassed upon, interfered with and unlawfully and illegally converted plaintiff's intermodal chassis.

Under the fifth cause of action, the complaint alleges that plaintiff is and was the owner and lessor of chassis, which were and are situated at the chassis pools at various ports. The chassis pool services primarily truckers who transport containers from container ships. The containers are placed on chassis, which truckers rent. Plaintiff is and was entitled to the immediate and exclusive possession of the chassis following the default in payments.

As context, plaintiff explains that it is the owner of chassis in the chassis pools at the ports of Los Angeles and Long Beach, which are rented to truckers who take containers off steamships. The containers are placed on chassis. Truckers then use their own tractors to transport the containers and goods to consignees. Plaintiff states that any trucker with a valid SCAC code (DOT registration) is able to take a chassis from the chassis pools at the ports. The exit and return of chassis are digitally monitored.

Truckers are invoiced for their use of chassis. Plaintiff contends that there are truckers who are serial abusers of plaintiff's chassis who routinely take chassis and never remit payment of chassis rental charges.

Plaintiff asserts that defendant is a "serial abuser of chassis" and that its account balance had mushroomed to \$142,674.50 when the complaint was filed and continues to accrue new charges.

Plaintiff asserts that it is unable to prevent truckers who are delinquent in rental payments from taking chassis. See Karen Wolcott decl.

Plaintiff argues that a preliminary injunction is intended and necessary to preserve the status quo and prevent further injury to plaintiff and that it is reasonably probable that it will prevail on the merits of its claim. Plaintiff also argues that there is a threat of irreparable harm to plaintiff's rights and there is no adequate legal remedy. Plaintiff requests that the Court require a minimal or no bond.

In opposition, defendant argues that plaintiff has not

shown irreparable injury or an inadequate legal remedy. Defendant contends that plaintiff's alleged injury is "unpaid rent" and that plaintiff's exhibits may support a damages claim but "defeat the premise that compensation is impossible or extremely difficult to ascertain." Defendant asserts that plaintiff offers no evidence of insolvency, dissipation, concealment, destruction, unique property loss, safety risk, or inability to calculate future charges or identify any chassis presently in defendant's possession that it refuses to return.

Defendant also argues that the balance of interim harm favors defendant because its harm is operational—exclusion from chassis used to move containers through the ports would impede customer service, reduce revenue, impair relationships, and jeopardize jobs and the company's ability to resolve the account at issue. Defendant further argues that the over is overbroad and insufficiently definite but does not specify a proposed identification method, chassis list, pool protocol, or evidence that defendant and its drivers can reliably determine ownership before interchange. Defendant asserts that if the Court finds "some interim protection warranted," defendant suggests a narrower order.

The Court rules as follows: The Court finds that a preliminary injunction should not issue because there is an adequate legal remedy; plaintiff does not argue otherwise. Plaintiff is seeking money damages that are calculable. Plaintiff does not allege that defendant is harming or not returning chassis.

The motion is DENIED.

ORDER

The motion is DENIED.

Plaintiff is to give notice of ruling.